

अनुबंध | Contract



अनुबंध क्रमांक | Contract No: GEMC-511687721084070

अनुबंध तिथि | Contract Generated Date : 24-Sep-2026

खरीद का माध्यम | Procurement Mode: Direct Purchase(DP)

संगठन विवरण Organisation Details	खरीदार विवरण Buyer Details
प्ररूप Type : Central Autonomous	पद Designation : Assistant Administrative Officer
मंत्रालय Ministry : Ministry of Agriculture and Farmers Welfare	संपर्क नंबर Contact No. : 033-24212115-208
विभाग Department : Department of Agricultural Research and Education (DARE)	ईमेल आईडी Email ID : swarnali.mukher-icar@nic.in
संगठन का नाम Organisation Name : Indian Council of Agricultural Research (ICAR)	जीएसटीआईएन GSTIN : 19AAAAI1830P4ZD
कार्यालय क्षेत्र Office Zone: National Instt Of Natural Fibre Engg n Tech	पता Address : 12, Regent Park, CALCUTTA SOUTH DIVISION, WEST BENGAL-700040, India

वित्तीय स्वीकृति विवरण Financial Approval Detail	भुगतान प्राधिकरण विवरण Paying Authority Details
आईएफडी सहमति IFD Concurrence : Yes	Role: PAO
प्रशासनिक अनुमोदन का पदनाम Designation of Administrative Approval: Director, ICAR-NINFET	भुगतान का तरीका Payment Mode: Offline
वित्तीय अनुमोदन का पदनाम Designation of Financial Approval: Director, ICAR-NINFET	पद Designation : Finance and Accounts Officer
	ईमेल आईडी Email ID : palash.tiwari@icar.org.in
	जीएसटीआईएन GSTIN : 19AAAAI1830P4ZD
	पता Address: 12, Regent Park, CALCUTTA SOUTH DIVISION, WEST BENGAL-700040, India

परिचिती विवरण Consignee Details			
क्र.सं. S.No	परिचिती नाम & पता Consignee Name & Address	सेवा विवरण Service Description	मात्रा Quantity
1	संपर्क Contact : 033-24212115-208 ईमेल आईडी Email ID : ratan.roy-icar@nic.in जीएसटीआईएन GSTIN : 19AAAAI1830P4ZD पता Address : 12, Regent Park, CALCUTTA SOUTH DIVISION, WEST BENGAL-700040, India	Annual Maintenance Service - Photocopier Machine - Photocopier Machines (Monochrome , Laser , Separate Drum & Tonner, Mid Range); Canon; OEM Authorised Service Provider	1

सेवा प्रदाता विवरण Service Provider Details
जेम विक्रेता आईडी GeM Seller ID : 40C3190000920729
कंपनी का नाम Company Name : Aegis Solutions
संपर्क नंबर Contact No. : 08335810009
ईमेल आईडी Email ID : surajit.tewary@gmail.com
पता Address : 391/81, Prince Anwar Shah Road, Poddar Nagar, Kolkata, WEST BENGAL-700068, -
एमएसएमई पंजीकरण संख्या MSME Registration number : UDYAM-WB-10-0015999
जीएसटीआईएन GSTIN: 19AAWFA7948R1Z1 (R)
एमएसई सामाजिक श्रेणी MSE Social Category : General
एमएसई लिंग श्रेणी MSE Gender : Male

*जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा | GST / Tax invoice to be raised in the name of - Buyer

सेवा विवरण | Service Details

सेवा प्रारंभ दिनांक (नवीनतम) | Service Start Date (latest by): 01-Oct-2026 सेवा समाप्ति तिथि | Service End Date : 30-Sep-2027

श्रेणी नाम | Category Name : Annual Maintenance Service - Photocopier Machine

बिलिंग चक्र Billing Cycle: yearly			
विवरण Description		Quantity of Photocopier Machines	AMC charge per Photocopier Machine per anum
Type Of Asset	Photocopier Machines (Monochrome , Laser , Separate Drum & Tonner, Mid Range)	1	12990
Make/Brand Of Assets	Canon		
Status of Annual Maintenance Service Provider	OEM Authorised Service Provider		
कुल राशि (सूत्र) Total Amount (Formula) : (AMC charge per Photocopier Machine per anum*Quantity of Photocopier Machines*Con tract Period/365)			
ऐडऑन के बिना कुल मूल्य Total Value without Addons(INR)			12990
कुल एडऑन मूल्य Total Addon Value(INR)			0
ऐडऑन सहित कुल मूल्य Total Value Including Addons(INR)			12990.00

अनुबंध की राशि Amount of Contract	
सभी शुल्क और करों सहित कुल अनुबंध मूल्य Total Contract Value Including All Duties and Taxes(INR)	12990
एसएलए विवरण SLA Details	
Special Terms and Conditions For Annual Maintenance Service - Photocopier Machine	
1. Agreement Overview This Agreement represents Special Terms and Conditions (STC) and Service Level Agreement (SLA) between the Buyer and the Service Provider. The purpose of this Agreement is to facilitate rendering of Annual Maintenance Service - Photocopier Machine from the Buyer's premises, or any other premises designated by Buyer. This Agreement outlines the scope of work, obligations of both the Buyer and the Service Provider, special terms and conditions related to the service delivery and payment of services, for mutual understanding of the stakeholders. The Agreement remains valid until the completion of scope of services or end of Contractual duration (whichever is earlier) unless either superseded by a revised Agreement/ Contract mutually entered into by the stakeholders or terminated by either of the parties thereof. The Services Contracts placed through GeM shall be governed by following set of Terms and Conditions: 1. General Terms and Conditions ("GTC"); 2. Service Specific Special Terms and Conditions ("STC") of the Services Contracts which shall include the service level agreement (SLA) for the service 3. BID / Reverse Auction specific Additional Terms and Conditions ("ATC") as specified by the Buyer. The above terms and conditions are in reverse order of precedence i.e. ATC supersedes Service specific STC which supersedes GTC, whenever there are any conflicting provisions. The above set of terms and conditions along with scope of work and service level agreement as enumerated in the document shall be construed to be part of the Contract between the Buyer and the Service Provider. 2. Objectives and Goals The objective of this Agreement is to ensure that all the commitments and obligations are in place to ensure consistent delivery of services to the Buyer by the Service Provider. The goals of this Agreement are to: 1. Provide clear reference to service ownership, accountability, roles and responsibilities of both parties. 2. Present a clear, concise and measurable description of services offered to the Buyer. 3. Establish terms and conditions for all the involved stakeholders, it also includes the actions to be taken in case of failure to comply with conditions specified. 4. To ensure that both the parties understand the consequences in case of termination of services due to any of the stated reasons. The Agreement / Contract will act as a reference document that both the parties have understood the terms and conditions and have agreed to comply by the same. The Agreement can also be amended by the Buyer and the Service Provider with mutual consent. 3. Parties to Agreement The main stakeholders associated with this agreement are below- 1. Buyer: The Buyer is responsible for providing clear instructions, approvals and timely payments for the services availed 2. Service Provider: The Service Provider is responsible for providing all the required services in timely manner. The Service Provider may also include seller, any authorized agents, permissible assignees, successors and nominees as described in the agreement. The responsibilities and obligations of the stakeholders have been outlined in this Agreement. The Agreement also encompasses service level/ deductions in case of non-adherence to the defined terms and conditions. 4. Scope of Services The Contract shall be on comprehensive basis, inclusive of repairs and replacement of spare parts without any extra payments. The AMC Vendor shall carry out preventive maintenance Services as per schedule indicated in bid document. If nothing is indicated, Preventive Maintenance Service will be done once in (3) three months during the currency of the Contract. The scope of Annual Comprehensive Maintenance Service covers upkeep & smooth working of the equipment within the premises of the user department as per laid down Service level agreement and other provisions contained in the agreement document. The Service Provider shall deploy trained, experienced and competent service engineer for carrying out necessary maintenance services for the equipment as per bench marked maintenance practices / OEM manuals and to provide efficient engineering services in the user premises. Continuous efforts shall be made by the Service Provider to minimise the down time of the equipment as a part of the duties of the Service Provider. The Service Provider shall ensure that all equipment is maintained at optimum operating levels. All scheduled maintenance required for the upkeep of the equipment will be carried by the Service Providers and for this all the necessary & adequate tools / instruments will be provided by the Service Provider itself to the engineers responsible for upkeep of equipment at user's premises. Comprehensive Annual Maintenance Contract Services for Photocopier Comprehensive AMC includes all parts of the equipment. Any defective part of the equipment must be repaired /replaced by the Service Provider at his own cost. Parts so replaced should be new and genuine OEM parts or as prescribed by OEM in their Service Manual and depending on the item under Contract. This would include (Depending upon the Contract Duration / Contractual obligation): 1. Preventive Maintenance Service (PMS) –Monthly / Quarterly as indicated in bid 2. Annual Maintenance Services (AMS) 3. Break Down Services/Repair (BDS) 5. Terms and Conditions 5.1 Buyers Obligations 5.1.1 Buyer Department shall ensure that the Service Provider gets the required access to location/ areas/ rooms for providing the services as per installation of equipment. 5.1.2 Buyer shall provide the details for the model numbers of equipment / spare parts cat part id etc to the Service Provider for effective service rendering. 5.1.3 Buyer shall also mention any previous break downs and repairs to the Service Provider, if necessary. 5.1.4 The Buyer shall ensure that the photocopy machine covered under the AMC is in working condition, at the time of commencement/takeover under the AMC. The Service Provider shall bear no liability in respect thereof unless mutually agreed by the Parties. 5.1.5 During the subsistence of the Contract and in the course of performance of the Services, the Buyer shall comply with all applicable laws, rules, regulations, policies, circulars, notifications, governmental instructions, and organisational policies, as applicable.	

5.2 Service Provider Obligations

5.2.1 The Service Provider shall put asset number on each of the system being maintained by them. These should correspond to the numbers of equipments to be maintained in a separate register along with details of rooms/place where they are placed/located. If there is shifting of the equipment/s under this AMC, the Service Provider will have to make changes in record accordingly. Designated Officer in charge (IT Systems) would assist the Service Provider in this task and ensure this to be done under his supervision

5.2.2 The Service Provider shall deploy technically competent service engineer / engineers at user's premises as per deployment details intended in bid document to ensure proper upkeep of equipment and resolution of fault during the AMC period.

5.2.3 Complaint/(s) can be registered either telephonically or by e-mail or in person at helpdesk setup established by the Service Provider at user premises. Proper record of the complaints shall be maintained by the service provider at each consignee location / user premises. The Service Provider will provide contact point and escalation matrix.

5.2.4 The Service Provider shall use suitable instruments / tools to examine and repair the equipment. The AMC Service Provider shall have the required drivers / software for maintaining the PCs and peripherals and for configuring them. If required in bid document, the Service Provider shall also do the update / maintenance of operating system, software installation provided by the user, installation of patches, configuration of applications (clients side) and updating of drivers etc.

5.2.5 The Service Provider is required to maintain the log sheet which will include number of services provided during the Contract period with dates and part of the equipment got repaired or replaced, with its proper model number and necessary details. The Service Provider shall provide quarterly or as mentioned by the Buyer call logged and resolution data in pdf/excel format to the Buyer.

5.2.6 The Service Provider will maintain the confidentiality of data stored on the computer systems. The Service provider assigned manpower shall ensure and follow the obligations covered non-disclosure of Buyer's confidential information.

5.2.7 All the consumable articles / parts such as material required for cleaning of equipment and machinery, repairs and maintenance will be provided by the Service Provider at no extra charge to the Buyer. The repairs/replacement of parts and maintenance will be provided by the Service Provider at no extra charge to the Buyer.

5.2.8 The Service Provider would give a report regarding taking over of the equipment for maintenance purposes. It shall be the responsibility of the Service Provider to make the equipment work satisfactorily throughout the Contract period, also to hand over the equipment to the department in working condition on expiry of the Contract. In case any damage in the equipment is found, a deduction would be applied at the time of payment and the amount as per the defined deduction would be deducted.

5.2.9 The Service Provider shall be solely responsible for any injury to its engineers, technicians, workmen, or other manpower engaged in the services under this agreement, as well as for any damage to the Buyer's equipment, property, or premises arising during the course of such services.

5.2.10 The Service Provider shall at all times ensure that the services being provided under this Contract/ Agreement are performed strictly in accordance with all applicable laws, orders, bye-laws, regulations, rules, standards, recommended practices etc, and no liability in this regard will be attached to the Buyer.

5.2.11 The Service Provider shall be fully responsible for the acts of their representatives and shall fully indemnify the Buyer for any kind of losses or damages caused by its representatives. The Buyer shall not be responsible for any claim from any representative employed by the Service Provider. The Service Provider shall wholly and fully be responsible for any such claims. The Service Provider shall indemnify, defend and hold harmless the Buyer, its officers, employees and authorised representatives from and against any and all losses, claims, damages, liabilities, penalties, costs and expenses, including reasonable legal fees, arising out of or in connection with any breach of the terms of this Agreement by the Service Provider, any negligent act, omission, fraud or wilful misconduct of the Service Provider or its personnel, any third-party claim arising from installation, operation, malfunction or failure of the surveillance system or services provided, any infringement or alleged infringement of intellectual property rights arising from use of any equipment, software or services supplied under this Agreement, and any breach of applicable laws including data protection, privacy, cybersecurity, labour and taxation laws. The Service Provider shall, at its own cost, defend such claims and shall not settle any claim without prior written consent of the Buyer. The obligations under this clause shall survive termination or expiry of the Agreement.

5.2.12 The Service Provider shall ensure appropriate deployment of the manpower as per requirement if indicated in bid document.

5.2.13 The Service Provider shall ensure that all the hardware assets are in working conditions in the Buyer's premises. The Service Provider shall provide service support as and when required during the AMC period without any extra cost to Buyer. "Post Contract award, the Service provider shall provide the escalation matrix and call logging mechanism".

5.2.14 In case the Service Provider fails meeting maintenance requirements in time, and Buyer may make alternative arrangements for the servicing/maintenance of the equipment to avoid productivity or as agreed between Buyer and Service Provider.

5.3 Other Terms & Conditions

5.3.1 The comprehensive maintenance includes preventive maintenance monthly / quarterly as per bid and regular services of the various equipment and/or replacement of any items necessary for keeping the listed equipment active and free from any defects/disturbance and on any unscheduled call for corrective and maintenance services.

5.3.2 The Buyer shall indicate preferably the Equipment Name, Quantity, Location, date of procurement, etc. to enable the Service Provider to quote.

5.3.3 In case of delay in attending to problems, breakdown of systems due to improper handling by the Service Provider personnel etc. suitable deductions for violation of service level agreements shall be levied as indicated in the deductions Clauses.

5.3.4 The annual maintenance shall be carried out during office hours, primarily at the premises as specified in the work order. In case, the Service Provider feels that the equipment cannot be repaired at site, they shall carry and deliver the equipment back at their own cost and risk after getting it repaired promptly.

5.3.5 The Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as notified and in force, together with all rules, schemes, notifications and statutory instruments made thereunder.

5.4 Response Time

The response time is subject function of working days during working hours.

5.4.1 Ordinarily a complaint must be attended within 4 hours when no change of spare part is involved, however in case of requirement of change of spare part, the complaint shall be resolved within 48 hours of its receipt. Majority of faults shall be rectified in the first response itself. However, maximum period allowed for defect rectification shall be 48 hours.

5.4.2 In case the system is not repaired, or an alternative system not supplied within the period of 48 hours from the time of failure reported, then the Buyer may choose to get the same repaired by or part replaced by other authorised / suitable service agency and the cost and expenditure incurred therein shall be recoverable from the Service Provider.

System Uptime

The breakdown time will be worked out as under: -

Total Machine's Days(X) = (NO of equipment under AMC) * No. of working day in a quarter.

Breakdowns (Y) = Cumulative Sum of breakdown duration of all the equipment under AMC in days during the quarter

Percentage uptime= (X-Y)/X) *100.

The selected Service provider shall ensure minimum 95% uptime.

6. Payment Terms and Conditions

6.1 Payment shall be made once the Service Provider submits the invoice online on GeM portal along with other relevant documents and after generation of Service Delivery Acceptance Certificate (SDAC) by consignee for the submitted invoice.

6.2 All deductions (if applicable) will be accounted/deducted during SDAC generation before making the payments. Payment will be made through bank transfer only and in no circumstance, payment shall be made through cash/ cheque payment.

7. Deductions / Liquidated Damages (LD)

Deductions may be imposed by the Buyer for the following:

Sl. No	Service Level Agreement	Base Line Performance	Deductions for breach	
			1st Instance	2nd Instance and onwards
1	Log sheet to be maintained	Per Visit / per maintenance arising on call	1% of billed amount	2% of billed amount
2	Delay in carrying out AMC as per schedule	Within 2 days (48 hours) of scheduled date	1% of billed amount	2% of billed amount
3	Failure to deliver AMC services	As defined in the Contract document	3% Contract value	Termination of Contract

7.1 The overall deductions/ LD will be capped at 10% of the Invoice value.

7.2 The amount of deductions / LD may be adjusted or set of against any sum payable to the Service Provider under this or any other Agreement with the Buyer.

7.3 All statutory variations leading to increase in the cost of the Contract will be debited to the Buyer's accounts.

8. Termination of Contract

The Agreement shall come to an end either on completion of the Contract Period or shall be terminated for the following reasons:

8.1 Mutual consent: The Contract may be terminated based on mutual consent in case the services are no longer required. Termination based on mutual consent will not attract any deductions or shall not be liable for any extra payments other than payment of invoices raised till the time of termination including notice period.

8.2 Breach of Contractual obligations: The Buyer shall have the right to terminate the Contract effective immediately by giving written notice of 30 days to the Service Provider, if the Service Provider breaches a material provision of this Contract where that breach is not capable of remedy; or if the Service Provider breaches any provision of this Contract and fails to remedy the breach within 14 (fourteen)days after receiving notice requiring it to do so.

8.3 Breach of SLAs: The Contract may also be terminated by the Buyer if the cumulative deductions / LD rise to 10% of the Contract value.

However, termination of this Contract shall not affect any accrued rights or remedies of either party.

9. Service Formula

Total Price = A*B*C/365

Where,

A = AMC charge per Photocopier Machine per annum

B = Quantity

C = Contract Period

Example:

If the AMC charge is 12,000 per Photocopier Machine per annum, AMC services are required for 10 Photocopier Machines, and the contract period is 730 days, then:

A = 12,000 (AMC Charge per Photocopier Machine per annum)

B = 10 (Quantity of Photocopier Machines)

C = 730 (Contract Period in Days)

Example Calculation:

Total Contract Value=12000*10*730/365

=240,000 INR

NA

नियम और शर्तें | Terms and Conditions

1. General Terms and Conditions-

- 1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.
- 1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable
- 1.3 All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

Note:

1. Service Providers are required to raise invoices online as per the contract terms on GeM portal. Timely invoice submission is mandatory for compliances, smooth payment processing, and will also contribute to improving their ratings.
2. The Excess settlement has been enabled for this contract. The service provider can claim additional charges, if applicable, in the invoice. Any additional charges must be supported with documentary evidence.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है।

Note: This is system generated file. No signature is required.